CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, May 22, 2019
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, May 22, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Joseph L. Kelley, and Commissioner Sherelean Bass. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Vincent Brown, and City Clerk Joanna Flores. Commissioner Alvin Burke was not in attendance.

3. INVOCATION:

The invocation was delivered by Commissioner Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

Commissioner Bass presented awards to two (2) students from the local schools for their achievement during the 2018 – 2019 school year and made "Student of the Year"; Wendell Copeland was recognized, however, the other student was not in attendance.

Commissioner Kelley presented an award to Mr. Calvin Russell for all of his years of service in the community and also serving on the Planning Council.

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

There were no items pulled from the Consent Agenda.

NEW ITEM(S):

A request was made to amend the agenda as follows:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY ATTORNEY TO ISSUE A CERTIFIED

LETTER TO GRACE AND NAEEM, INC., DEMANDING THAT IT REMOBILIZE AND COMPLETE THE RENOVATION OF HISTORIC CITY HALL, OR FACE A DEMAND OF FORFEITURE OF ITS PERFORMANCE BOND; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.
Sponsored by Commissioner Kelley

Mayor Pigatt asked what the emergency condition for this item was.

Commissioner Kelley said given where the City is for the Hurricane season, it is necessary at this time. He was asked by the mayor to defer it at the last meeting so the company could respond to a letter he sent, but he has not heard anything from the mayor or anyone else. He is putting it back on at this time so it can be voted on

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to amend the agenda to include the above resolution as item 14-1.

Mayor Pigatt said he had spoken to Grace and Naeem and was awaiting a follow up response from them. He did not reach out to the commissioner because he did not want to violate any of the Sunshine Laws.

Commissioner Kelley said if he had known the mayor reached out to the company he would not have put the item back on the agenda. He said it is not a violation of any Sunshine Laws because it is not a discussion where any votes are being taken so he could have even shared the information through the City Clerk's Office.

This item was deferred by the sponsor.

7. APPROVAL OF AGENDA:

It was moved by Commissioner Bass, seconded by Vice Mayor Davis to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Not Present
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

8. APPROVAL OF MINUTES:

Regular Commission Meeting Minutes – April 10, 2019

It was moved by Vice Mayor Davis, seconded by Commissioner Kelley to approve the minutes from the Regular Commission Meeting of April 10, 2019.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Not Present

Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Regular Commission Meeting Minutes – April 24, 2019

It was moved by Vice Mayor Davis, seconded by Commissioner Bass to approve the minutes from the Regular Commission Meeting of April 24, 2019.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Not Present
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Special Commission Meeting Minutes – May 6, 2019

It was moved by Commissioner Bass, seconded by Vice Mayor Davis to approve the minutes from the Special Commission Meeting of May 6, 2019.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Not Present
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Special Commission Meeting Minutes – May 15, 2019

It was moved by Commissioner Bass, seconded by Commissioner Kelley to approve the minutes from the Special Commission Meeting of May 15, 2019.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Not Present
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

10. PUBLIC PRESENTATION:

11. CITIZENS' INPUT:

12. ACTION ITEMS:

13. CONSENT AGENDA:

1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER AND THE CITY POLICE CHIEF TO ENTER INTO AND EXECUTE A VOLUNTARY COOPERATION AND OPERATIONAL ASSISTANCE MUTUAL AID AGREEMENT (MAA) WITH THE CIT OF MIAMI BEACH, FLORIDA, SUBSTANTIALLY IN THE FORM ATTACHED, FOR LAW ENFORCEMENT SERVICES AND RESOURCES EFFECTIVE THROUGH AND INCLUDING DECEMBER 31, 2023; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

2 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPOINTING BURNADETTE NORRIS-WEEKS, PA AS CITY ATTORNEY AND DIRECTING THE CITY MANAGER TO EXECUTE THE RETAINER AGREEMENT (EXHIBIT "A") BETWEEN THE CITY OF OPA-LOCKA AND BURNADETTE NORRIS-WEEKS, PA; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Commission*

The above resolutions were read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to pass the resolutions.

The motion on the resolutions passed by a 4-0 vote.

Commissioner Burke	Not Present
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

City Attorney Brown thanked the City and the new commission for the opportunity to serve for the last four (4) years and even though he has not worked with them for a long time, he appreciates the opportunity never the less.

Commissioner Kelley thanked the attorney for serving and told him not to be a stranger.

Commissioner Bass thanked the attorney for serving.

Vice Mayor Davis also thanked the attorney for serving.

Mayor Pigatt thanked the attorney for serving and guiding him through his first two (2) years in office. His work and dedication was what brought him to where he is now and he would not have gotten here without him; he is very grateful he had the chance to work with him.

14. NEW ITEMS:

15. PLANNING & ZONING:

A. PUBLIC HEARINGS:

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S):

B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

C. RESOLUTIONS/PUBLIC HEARINGS:

17. CITY MANAGER'S REPORT:

Acting City Manager Daughtrey said his focus is dealing with the audit for 2017 and the CITT audits. The second focus is the unbilled months for utility billing and transferring the system to Miami-Dade County. Cameras have been installed in utility billing to address the ongoing complaints from residents regarding customer service. This is the first year of the Financial Recovery Plan and they are working to handle the funds by the book so they are in compliance with doing what is necessary to come out of oversight. At the end of the month, they expect to receive the pothole patcher which will aide in maintaining the roads and streets.

Commissioner Kelley asked the manager if he is waiting for direction from the commission regarding the report he presented to them. He said State Representative Bush went to Tallahassee and secured funding for the City and they spoke highly of the manager. He asked if the Planning & Zoning Board meetings are canceled, does the meeting need to be advertised or is it simply deferred.

Acting City Manager Daughtrey said it has to be advertised at a cost of two thousand dollars ($2,000.00).

Commissioner Kelley suggested that even if there are only two people present, then can the meeting be called and then be recessed or deferred to save on the advertising costs since you cannot control if the members come or not.

City Attorney Brown said they will look into the matter.

Mayor Pigatt asked the clerk how often does the board meet.

City Clerk Flores said the first Tuesday of every month.

Mayor Pigatt asked who can speak on the board.

Planning & Community Development Director Gregory Gay said his staff does the scheduling for the meetings and polls the board two weeks in advance of the meeting. They do not find out they are not coming until minutes before the meeting.

Mayor Pigatt asked what the process was for removing someone from the board.

City Attorney Brown said the process should be in the code.

Mayor Pigatt asked that the City does what needs to be done to rectify this so the businesses can move forward. He went on to ask the manager if the Vac Truck will be in use since the rainy season is upon us.

Acting City Manager Daughtrey said, "Yes."

18. OFFICIAL BOARD REPORTS:

Mayor Pigatt asked the clerk to look into having someone from the board come to the meeting and provide a board report. He said since he has been in office, he has never seen anyone provide a board report.

City Clerk Flores agreed to look into the matter.

19. MAYOR/COMMISSION REPORT:

Commissioner Bass said Bingo will be held on May 31, 2019 at 6:00 p.m. and she looks forward to seeing everyone.

Commissioner Kelley said State Representative James Bush came to the last Meet Me Monday and spoke with residents; it was very informative. He gave Kudos to the Parks and Recreation Department for hosting the Seniors on the Move Mother's Day Luncheon as the seniors appreciated it. He attended the first meeting for the 2019 Super Bowl Committee and they are willing to come and assist with the cleanup efforts for one of the parks. The Ingram Park cleanup project is still taking place and volunteers are needed. He said he would like to do a park summit and get ideas from the community on what they would like to see on Ingram Park, including the waterfront.

Mayor Pigatt asked the commission how they would feel about amending the agenda and moving the reports before citizens forum to give residents the opportunity to receive the information in case they may not be staying for the entire meeting; he said he will revisit it when Commissioner Burke is present and asked the present members to give it some thought.

Acting City Manager Daughtrey said the five year recovery plan is basically what the City plans to do to come out of the financial emergency within the next five years.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Commissioner Kelley, seconded by Mayor Pigatt to adjourn the meeting at 8:04 p.m.

MAYOR

ATTEST:

Joanna Flores

CITY CLERK